

### **FIRST ENDORSEMENT**

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, September 10, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29463 against Sergeant Edmundo Rivera, Tax Registry No. 955382. The case was conferenced on August 22, 2024 and August 29, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the dismissal of the charges in return for the recommended negotiated penalty of a Command Discipline (A) and the forfeiture of three (3) vacation days.

*Andre Applewhite*

---

Andre Applewhite  
Chief Prosecutor, APU  
New York City Civilian Complaint Review Board



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

|                                                         |
|---------------------------------------------------------|
| <b>CASE NO.</b><br>2023-29463                           |
| <b>BOOK &amp; PAGE NO.</b><br>Page <u>1</u> of <u>2</u> |
| <b>PERSONNEL ORDER NO.</b>                              |

|                                 |                                   |                             |             |                                     |
|---------------------------------|-----------------------------------|-----------------------------|-------------|-------------------------------------|
| <b>RANK/TITLE</b><br>SGT        | <b>SURNAME,</b><br>RIVERA         | <b>FIRST</b><br>EDMUNDO     | <b>M.I.</b> | <b>COMMAND</b><br>049 PRECINCT      |
| <b>SHIELD NO.</b><br>1573       | <b>TAX REGISTRY NO.</b><br>955382 | <b>SOCIAL SECURITY NO.</b>  |             | <b>DATE APPOINTED</b><br>07/09/2013 |
| <b>RANK/NAME OF COMPLAINANT</b> |                                   |                             |             | <b>COMMAND</b>                      |
| <b>DATE OF CHARGES</b>          |                                   | <b>DATE TRIAL COMMENCED</b> |             | <b>DATE TRIAL CONCLUDED</b>         |

**TRIAL COMMISSIONER**

| SPECIFICATION                                                                                                                                                                                                                                                                                                                 | DISPOSITION | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ]                                                                                                                                                                                                                                                                                                                                                   |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. Sergeant Edmundo Rivera, on or about September 15, 2022, at approximately 2312, while assigned to NARCBMN and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that Sergeant Rivera stopped § 87(2)(b) without sufficient legal authority. | DISMISSED   | A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 3.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. |
| 2. Sergeant Edmundo Rivera, on or about September 15, 2022, at approximately 2312, while assigned to NARCBMN and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that Sergeant Rivera frisked § 87(2)(b) without sufficient legal authority. | DISMISSED   |                                                                                                                                                                                                                                                                                                                                                                                             |
| 3. Sergeant Edmundo Rivera, on or about September 15, 2022, at approximately 2312, while assigned to NARCBMN and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police                                                                                            | DISMISSED   |                                                                                                                                                                                                                                                                                                                                                                                             |

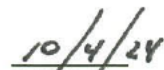
  
FIRST DEPUTY COMMISSIONER

  
DATE

**POLICE COMMISSIONER'S APPROVAL**

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

  
POLICE COMMISSIONER

  
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.  
2023-29463BOOK & PAGE NO.  
Page 2 of 2

PERSONNEL ORDER NO.

|                          |                            |                      |                              |                         |
|--------------------------|----------------------------|----------------------|------------------------------|-------------------------|
| RANK/TITLE<br>SGT        | SURNAME,<br>RIVERA         | FIRST<br>EDMUNDO     | M.I.                         | COMMAND<br>049 PRECINCT |
| SHIELD NO.<br>1573       | TAX REGISTRY NO.<br>955382 | SOCIAL SECURITY NO.  | DATE APPOINTED<br>07/09/2013 |                         |
| RANK/NAME OF COMPLAINANT |                            |                      |                              | COMMAND                 |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                              | DATE TRIAL CONCLUDED    |

TRIAL COMMISSIONER

| SPECIFICATION                                                                                                                                                                                                                                                                                                                                       | DISPOSITION | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [] |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|------------------------------------------|
| Department, in that Sergeant Rivera searched § 87(2)(b) without sufficient legal authority.                                                                                                                                                                                                                                                         |             |                                          |
| 4. Sergeant Edmundo Rivera, on or about September 15, 2022, at approximately 2312, while assigned to NARCBMN and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that Sergeant Rivera failed to provide § 87(2)(b) with a business card without police necessity.  | DISMISSED   |                                          |
| 5. Sergeant Edmundo Rivera, on or about September 15, 2022, at approximately 2312, while assigned to NARCBMN and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that Sergeant Rivera refused to provide his name to § 87(2)(b) without police necessity.          | DISMISSED   |                                          |
| 6. Sergeant Edmundo Rivera, on or about September 15, 2022, at approximately 2312, while assigned to NARCBMN and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that Sergeant Rivera refused to provide his shield number to § 87(2)(b) without police necessity. | DISMISSED   |                                          |

*DC Butvin*  
FIRST DEPUTY COMMISSIONER

*9/26/24*  
DATE

## POLICE COMMISSIONER'S APPROVAL

☒ Approved☐ Disapproved☐ Other Action (Describe)

*Thomas DeSoto*  
POLICE COMMISSIONER

*10/4/24*  
DATE

**THIRD ENDORSEMENT**

First Deputy Commissioner to Police Commissioner, September 23, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-29463 (CCRB Case #202206453) against Sergeant Edmundo Rivera, Tax #955382, with the recommendation that the Charges and Specifications against Sergeant Rivera be dismissed and that Sergeant Rivera receive a Schedule "A" Command Discipline and forfeit three (3) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/pk

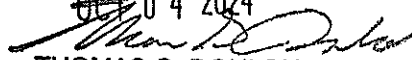


Tania I. Kinsella

**FIRST DEPUTY COMMISSIONER**

**APPROVED**

~~OCT 04~~ 2024



THOMAS G. DONLON  
POLICE COMMISSIONER